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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – CENTRAL DISTRICT (STANLEY MOSK COURTHOUSE)

FOX NORMANDIE APARTMENTS, LP Plaintiff, vs. **DERRICK L. BEVERLY**, an individual; and DOES 1 to 5, Defendant	Case Number: **22 STUD 06657** **PLAINTIFF'S OPPOSITION TO DEFENDANT'S EX PARTE APPLICATION** **Dept.:** 91 **Ex Parte Hearing:** October 17, 2025

TO DEFENDANTS AND TO THEIR COUNSEL OF RECORD, IF ANY:

Plaintiff, FOX NORMANDIE APARTMENTS, LP, comes before the court to request that the Defendant's motion be denied with prejudice as there is no pleading that the Defendant can file that would grant him any kind of relief.

I. BRIEF STATEMENT OF THE CASE

Plaintiff filed its unlawful detainer on October 13, 2022. The case went by way of default on November 21, 2022. The court entered a judgment on November 29, 2022, and issued the Writ of Possession on December 2, 2022. A lockout occurred January 26, 2023. The Defendant was locked out of the property and possession is no longer at issue. Defendant filed his first Appeal on September 11, 2023, close to a year after judgment was entered in this case. This appeal was dismissed for failure to file an Opening Brief after being placed in Default on January 24, 2024. Defendant filed a second appeal on June 10, 2024, appealing multiple decisions from Department 91 issued in 2022, which was untimely and ultimately dismissed for failure to procure the record and failure to cure the

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default on September 23, 2024. Defendant filed a 3rd appeal on November 25, 2024, appealing the same judgment rendered on November 29, 2022. Defendant also filed five (5) separate affirmative lawsuits against the Plaintiff seeking redress from the UD lockout and the disposition of his personal property after the lockout.[1] Defendant also filed a Civil Harassment Restraining Order, Case Number, 23STRO00528 on January 26, 2023, the day of the Sheriff lock-out but it was dismissed for failure to prosecute (tenant did not show up). Since then, Defendant has filed or noticed six (6) different Ex Partes in the last month all of which are procedurally defective and most of which fail to provide adequate notice. These dates are as follows:

- September 29, 2025
- October 9, 2025
- October 13, 2025
- October 15, 2025
- Noticed for October 16, 2025, but not filed
- October 17, 2025 – potentially filed

The Ex Parte motions simply ask for judicial findings and determinations on ex parte applications but fail to assert any remedy available to him as the judgment was entered over six months ago, his untimely appeals have been dismissed, and possession is no longer at issue.

II. ARGUMENT

a. Defendant is filing pleadings with the court to annoy and harass the Plaintiff.

The defendant has filed multiple ex parte motions in this court, three (3) appeals, filed a civil harassment claim, and filed five (5) affirmative cases against the landlord. The Defendant has been notified several times by Plaintiff's Counsel's office that proper electronic service requires him to serve eservice@loacs.com yet the Defendant continues to fail to provide any notice to that email address. Notice provided by the Defendant on October 15th had the date and time written in white

[1] In Case Number 23STCV07707, Tenant has averred to the unlimited Court Judge that the Landlord owes him $48 Million for the value of his personal effects disposed of according to statute after the Sheriff lock-out on January 26, 2023.

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type text so that the email appeared to be blank. Attorney Godinez only saw the time because his phone was set to dark thereby allowing the white to show through. Defendant's continued failure to appear for his ex-parties, and failure to provide adequate and reasonable notice can only be interpreted as meant to harass and annoy. His failure to prosecute any of his hearings, motions, appeals, or affirmative cases is further evidence of this Defendant's contempt for the legal process and to harass the Plaintiff who has been forced to respond to all of these filings. This is especially exacerbated by the fact that the ex partes lack any cognizable basis for any remedy as detailed below.

b. Defendant cannot have the judgment set aside because a request for a 473 motion is limited to six (6) months after judgment is entered.

Defendants cannot have his default judgment set aside because the default was entered more than six (6) months ago. In fact the judgment was entered into three (3) years ago. Under provision of this section, an application for relief from a default judgment taken through mistake, inadvertence, surprise, or excusable neglect must be made within 6 months after default was taken. *Furnival v. Groves* (1957) 317 P.2d 117, 154 Cal.App.2d 846; *McNeill v. Wheat* (1931) 295 P. 105, 111 Cal.App. 79; *Keown v. Trudo* (1925) 234 P. 910, 71 Cal.App. 155; *Hinds v. Superior Court of Los Angeles County* (1924) 223 P. 422, 65 Cal.App. 223.

c. The Court lacks jurisdiction in the underlying unlawful detainer as possession has already been restored.

In Del Riccio v. Superior Court (1952) 115 Cal. App. 2nd 29, a writ of execution was executed when the Sheriff levied judgment debtor's bank account. The bank made its return and paid the judgment amount to the Sheriff. Judgment debtor applied to the Court to have the Sheriff return the money. While the Sheriff still had the money, the Court ordered the Sheriff to not pay the judgment creditor and then stayed the matter. The reviewing Court reversed holding that "… the [trial] court could not, by ordering a stay, undo what had already been done so as to deprive the creditor of ownership and use of money collected under the writ." (Id. at pg 31.)

In Cardenas v. Noren (1991) 235 Cal. App. 3d 1344, the landlord was restored possession of the premises by sheriff's execution of a writ of possession. In the writ for mandate petition, tenant

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claimed he was wrongfully evicted by the sheriff's department as he was a tenant, he was named in the unlawful detainer action, but was never served with process, nor was he named in the default judgment. At the lock-out, the sheriff noted that the judgment did not include one of the named defendants from the action. Despite this discrepancy, the sheriff continued with the lock-out. None of the occupying tenants availed themselves of the claim of right to possession process outlined in CCP §1174.3. The reviewing Court affirmed the lower Court denying a writ of mandate since the tenants had the claim of right to possession process but failed to avail themselves of it. "Mandate lies to compel an officer to perform his ministerial duty. (Citations Omitted.) Where the sheriff had a pre-existing duty pursuant to the Government Code to return property seized upon an individual's arrest, issuance of a writ of mandate, ordering the sheriff to perform his duty, was appropriate." Holt v. Kelly (1978) 20 Cal.3d 560, 564. If, as Tenant avers, the lock-out was wrongly procured, the remedy is to seek a writ of mandate. In fact, Code of Civil Procedure §1210 permits the Court to hold a Tenant in contempt who has re-entered property after a judgment for possession. It does not give the Court authority to "undo" an executed writ, or make any further orders, once the writ has been returned by the Sheriffs.

Here, the Sheriff has executed on the writ of possession almost 3 years ago, restoring possession of the premises to the Landlord. Consequently, Tenant's personal effects were disposed of according to statute. Therefore, the Court has no authority to order its return to the Tenant, or make any other orders, such as setting the judgment aside, handling allegations of personal property, or otherwise restoring the case to the calendar. No matter how many applications the Defendant files, the facts will not change, nor will the lack of jurisdiction.

d. Defendant has exhausted his appellate remedies**.**

Defendant has filed three separate appeals, all of which have been dismissed for failure to prosecute in one way or another. His appeals were untimely when they were filed but the court permitted them to continue. The judgment cannot be attacked through this process anymore.

/////

III. CONCLUSION

Plaintiff respectfully submits that unless the court denies the Defendant's Ex Parte Application with prejudice, the Defendant will continue to file frivolous motions meant to vex and harass Plaintiff. Unless the Defendant can demonstrate that he has some legitimate claim, argument, or avenue within this court for relief, he should be barred from bringing further motions. Or, in the alternative, if the Court is concerned about denying the ex parte with prejudice, that it instead rules that the Defendant is in warning that further frivolous filings may result in an OSC re sanctions for filing motions without merit.

DATED: October 17, 2025

Respectfully submitted,

BY _____

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PROOF OF SERVICE

COUNTY OF LOS ANGELES, STATE OF CALIFORNIA:

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is: 8399 Topanga Canyon Blvd., Suite 304, West Hills, CA 91304

On **October 17, 2025,** I served the foregoing document described **PLAINTIFF'S OPPOSITION TO DEFENDANT'S EX PARTE APPLICATION** in this action by placing [X] the original [ ] a true and correct copy therefore enclosed in a sealed envelope with postage thereon fully prepaid, in the United States mail at Los Angeles, California addressed as follows:

DERRICK L. BEVERLY
1738 N. Las Palmas Avenue
Los Angeles, CA 90028
Email: derniercrilamont@yahoo.com;

[ ] [BY MAIL] Pursuant to CCP § 1013(a) and under firm practice said envelope would be deposited with the U.S. Postal Service on the same day with postage thereof fully prepaid at West Hills, California in the ordinary course of business. I am readily familiar with the Law Offices of Ada R. Cordero-Sacks ordinary business practice of collection and processing correspondence for mailing. I followed this business practice, and I placed the envelope for collection and mailing on the date identified above. I am aware that on a motion of the party served, service is presumed invalid if postage cancellation date or postage date is more than one day after date of deposit for mailing in affidavit. I deposited such envelope in the U.S. mail at West Hills, California.

[ ] United States Postal Service Next Day Shipping

[ ] [BY PERSONAL SERVICE] I caused our process server to deliver such envelope by hand to the address above.

[X] [ELECTRONIC SERVICE] I caused said document(s) to be transmitted to the email address(es) of the addressee(s) designated.

[X] [STATE] I declare under penalty of perjury under the laws of the State of California that the above is true and correct

DATED: October 17, 2025

Karina Medina